

TENTATIVE RULINGS

FOR: August 06, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Christopher Matthew Gillespie

19PR000227

FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR AND PETITION FOR ITS SETTLEMENT AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: In light of the Supplemental Briefing and Request for Continuance, filed July 30, 2026, the matter is CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. B. By September 3, 2026, Executor and Objector shall each, or jointly, file and serve supplemental briefing as to the status of the matter.

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PETITIONER’S MOTION TO COMPEL KRISTINE KLUSSMAN’S FURTHER RESPONSES TO DEMANDS FOR PRODUCTION OF DOCUMENTS, SET ONE

TENTATIVE RULING: The motion is DENIED.

Petitioners Robert Stobo and Douglas Croft, as Trust Protectors of the Ashe Family Trust and Ashe Vineyard Trust, and Ashe Advisors, LLC move, pursuant to California Code of Civil Procedure sections 2017.010, 2031.210, 2031.220, 2031.230, 2031.240, and 2031.310, and California Rules of Court, rule 3.1345, for an order compelling Responding Party Kristine Klussman to provide further responses to Petitioners’ Demand for Production of Documents, Set One, Nos. 23, 55, 56, and 58-60, and to produce all responsive, nonprivileged documents and communications in her possession, custody, or control within 15 days of the hearing.

In moving to compel additional responses to requests for production of documents, and/or to compel the actual production, the moving party must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.)

Demand for Production No. 23: The Motion is DENIED as to this Demand. Petitioners fail to show good cause for the production, particularly in light of the impact of the attorney-client privilege to the documents identified.

Petitioners contend that “Ms. Klussman placed attorneys’ fees at issue by seeking them in her First Amended Surcharge Petition. Counsel confirmed Ms. Klussman sought such attorneys’ fees as damages, not prevailing party fees.” (Separate Statement at 4:7-9.) However, Ms. Klussman clearly states that “Klussman seeks her attorney’s fees only as a prevailing party, not as damages.” (Responsive Separate Statement at 7:13-14.) This is consistent with allegations and prayers in the Surcharge Petition. (See, e.g., Surcharge Petition at ¶¶ 36, 41, and Prayer for Relief ¶ 2.)

Because an award of attorneys’ fees to the prevailing party are a form of costs of suit, a prevailing party may be obligated to support any such request at the time it is made. In this context, the Court finds that discovery into Ms. Klussman’s attorneys’ fees is premature.

Demand for Production No. 55-56: The Motion is DENIED as to these demands.

The subject demands seek “All COMMUNICATIONS between YOU and [MAX (Demand No. 55) / DAKOTA (Demand No. 56)] regarding any information ‘about the Trust’